

EMAIL TEXT EXTRACT

This file is the email text. It is not the original letterhead PDF. If a PDF was attached, that file is stored separately.

Date: Thu, 9 May 2019 06:53:02 +0000
From: "Manny Greenwood (HCC)" <Manny.Greenwood@hcc.vic.gov.au>
To: Rich McLean <rich@richmclean.com.au>
Subject: Your complaint about Dr Whitaker
Ref: 2019/00476

Dear Mr McLean

Your complaint about Dr Whitaker

I have now returned to work and your file has been assigned back to me. I have discussed the progress of your complaint with Shaun, who has informed me that you were considering whether to notify AHPRA of your complaint. I understand that Dr Whitaker's representation does not see any basis to consider compensation to resolve your complaint through our voluntary and impartial complaint resolution process.

With regard to your question about the AHPRA/HCC flow chart, where it suggests to contact our office if you are seeking compensation as an outcome, the flowchart is correct in that we are able to discuss this as an issue between both parties. Due to the voluntary and impartial nature of our complaint resolution process, however, if one party states they will not consider compensation as an outcome, we are unable to force compensation to be considered. This likely means that your remaining option may be to speak with a lawyer about pursuing resolution of your complaint outside of our voluntary process.

As mentioned by Shaun, if you decide to complain to AHPRA and, at the end of their process, they do find Dr Whitaker's actions were inappropriate, you are welcome to contact our office again to see if that new information changes the position of Dr Whitaker regarding your claim for compensation.

Unfortunately, given the stated position of Dr Whitaker (through his representation) I do not think our process will be able to achieve anything further at this stage. My plan is to close your complaint in our voluntary and impartial complaint resolution process and await any contact from you regarding the outcome of a complaint to AHPRA. If you would like to discuss any of this, please feel free to contact me on 9032 3125 or manny.greenwood@hcc.vic.gov.au<mailto:manny.greenwood@hcc.vic.gov.au>

Kind regards

Manny Greenwood
Senior Resolutions Officer

[hcc.vic.gov.au](http://www.hcc.vic.gov.au/)<<http://www.hcc.vic.gov.au/>>
Level 26, 570 Bourke Street T 03 9032 3125
Melbourne VIC 3000

[cid:image001.png@01D50582.68D42A80] [cid:image002.png@01D50582.68D42A80] <<https://www.facebook.com/HealthComplaintsCommissioner/>> [cid:image003.png@01D50582.68D42A80] <https://twitter.com/HCC_Vic>

The information in this email is confidential. It is intended only for the person to whom it is specifically addressed. If you have received this information in error please notify me immediately.